

Registration of Births and Deaths Act, 1969

[18 OF 1969]¹

An Act to provide for the regulation of registration of births and deaths and for matters connected therewith.

BE it enacted by Parliament in the Twentieth Year of the Republic of India as follows:—

CHAPTER I

PRELIMINARY

Short title, extent and commencement.

1. (1) This Act may be called the Registration of Births and Deaths Act, 1969.

(2) It extends to the whole of India.

(3) It shall come into force in a State on such date² as the Central Government may, by notification in the Official Gazette, appoint:

Provided that different dates may be appointed for different parts of a State.

1. Dated 31-5-1969.

2. (i) In State of Jammu and Kashmir* in area comprised within the jurisdiction of the Police Station of Ramnagar in Udhampur district area comprised within the jurisdiction of the Police Station of Kupwara in Baramulla district; area comprised within the limits of the Municipalities of Jammu and Srinagar; and the area comprised within the limits of Town Area Committees of Anantnag, Kathua and Leh. [Vide Notification No. G.S.R. 1718, dated 22-11-1970]

(ii) In the Union territory of Mizoram⁺, w.e.f. 1-5-1974. [Vide Notification No. G.S.R. 379, dated 22-3-1974]

(iii) In the Union territory of Goa, Daman and Diu, w.e.f. 1-1-1971. [Vide Notification No G.S.R. 1927, dated 21-11-1970]

(iv) In Union territory of Manipur⁺, w.e.f. 1-1-1971. [Vide Notification No. G.S.R. 2027, dated 24-11-1970]

(v) In the Union territory of Andaman and Nicobar Islands, w.e.f. 1-4-1974. [Vide Notification No. G.S.R. 106, dated 16-1-1971]

(vi) In whole of State of Nagaland, w.e.f. 1-10-1971. [Vide Notification No. G.S.R. 1324, dated 30-8-1971]

(vii) In the Union territory of Arunachal Pradesh⁺, w.e.f. 1-7-1972. [Vide Notification No. G.S.R. 552, dated 11-4-1972]

(viii) In State of Tripura, w.e.f. 1-4-1972. [Vide Notification No. G.S.R. 202(E), dated 17-3-1972]

(Contd. on page 2)

Definitions and interpretation.

2. (1) In this Act, unless the context otherwise requires,—

- ³[(a)] “Aadhaar number” shall have the same meaning as assigned to it in clause (a) of section 2 of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (18 of 2016);
- (aa) “adoption” shall have the same meaning as assigned to it in clause (2) of section 2 of the Juvenile Justice (Care and Protection of Children) Act, 2015 (2 of 2016);]
- ⁴[(ab)] “birth” means live-birth or still-birth;
- ³[(b)] “database” means the organised collection of data, generally stored and accessed in electronic form from a computer network;]
- ⁵[(ba)] “death” means the permanent disappearance of all evidence of life at any time after live-birth has taken place;
- (c) “foetal death” means absence of all evidence of life prior to the complete expulsion or extraction from its mother of a product of conception irrespective of the duration of pregnancy;
- (d) “live-birth” means the complete expulsion or extraction from its mother of a product of conception, irrespective of the duration of pregnancy,

(Contd. from page 1)

- (ix) In area comprised within limits of cantonments of Barrackpore, Labong and Jalapahar in the State of West Bengal, w.e.f. 1-12-1972. [Vide *Notification No. G.S.R. 463(E), dated 21-11-1972*]
- (x) Extended to the Union territory of Delhi, w.e.f. 1-7-1970. [Vide *Notification No. G.S.R. 973, dated 26-6-1972*]
- (xi) W.e.f. 1-4-1970, in the areas of the State of Assam except:—
 - (A) the district of United Khasi & Jaintia Hills excluding the areas comprised within the limits of:
 - (a) Municipality of Shillong
 - (b) Cantonment of Shillong
 - (B) the entire district of Garo Hills
 - (C) the entire district of United Mikir and North Cachar Hills
 - (D) the entire district of Mizo Hills.
 In the State of West Bengal except:
 - (A) The area comprised within the limits of Corporation of Calcutta;
 - (B) The area comprised within the limits of Howrah Municipality;
 - (C) Fort Villiam; and (iv) the area comprised, within the limits of cantonments of Barrackpore, Labong and Jalapahar. [Vide *Notification No. G.S.R. 514, dated 21-3-1970*]
- (xii) in the States of Andhra Pradesh, Mysore (Now Karnataka), Bihar, Orissa, Gujrat, Punjab, Haryana, Rajasthan, Kerala, Tamil Nadu, Madhya Pradesh, Uttar Pradesh and Maharashtra, and Union territories of Chandigarh, Dadra and Nagar Haveli, Himachal Pradesh*, Laccadive, Minicoy and Amindivi Islands, w.e.f. 1-4-1970 1970. [Vide *Notification No. G.S.R. 461, dated 7-3-1970*]

* Now Union Territory.

+ Now State.

3. Inserted by the Registration of Births and Deaths (Amendment) Act, 2023, w.e.f. 1-10-2023.

4. Clause (a) re-numbered as clause (ab), *ibid.*

5. Clause (b) re-numbered as clause (ba), *ibid.*

which, after such expulsion or extraction, breathes or show any other evidence of life, and each product of such birth is considered live-born;

- (e) “prescribed” means prescribed by rules made under this Act;
- (f) “State Government”, in relation to a Union territory, means the Administrator thereof;
- (g) “still-birth” means foetal death where a product of conception has attained at least the prescribed period of gestation.

(2) Any reference in this Act to any law which is not in force in any area shall, in relation to that area, be construed as a reference to the corresponding law, if any, in force in that area.

CHAPTER II

REGISTRATION ESTABLISHMENT

⁶[**Registrar General of India.**]

3. (1) The Central Government may, by notification in the Official Gazette, appoint a person to be known as the ⁶[Registrar General of India], India.

(2) The Central Government may also appoint such other officers with such designations as it thinks fit for the purpose of discharging under the superintendence and direction of the ⁷[Registrar General of India], such functions of the ⁷[Registrar General of India] under this Act as he may, from time to time, authorise them to discharge.

(3) The ⁷[Registrar General of India] may issue general directions regarding registration of births and deaths in the territories to which this Act extends, and shall take steps to co-ordinate and unify the activities of Chief Registrars in the matter of registration of births and deaths ⁸[and the database of registered births and deaths and submit] to the Central Government an annual report on the working of this Act in the said territories.

⁹[(4) The Registrar General of India shall maintain the database of registered births and deaths at the National level and it shall be obligatory upon the Chief Registrars and the Registrars to share the data of registered births and deaths to such database.

(5) Subject to the proviso to sub-section (1) of section 17 and with the prior approval of the Central Government, the database of registered births and deaths maintained under sub-section (4) may, on request, be made available to the authorities dealing with the preparation or maintenance of database relating to—

- (a) population register;
- (b) electoral rolls;
- (c) Aadhaar number;

6. Substituted for “Registrar-General, India” by the Registration of Births and Deaths (Amendment) Act, 2023, w.e.f. 1-10-2023.

7. Substituted for “Registrar-General”, *ibid*.

8. Substituted for “and submit”, *ibid*.

9. Inserted, *ibid*.

- (d) ration card;
- (e) passport;
- (f) driving licence;
- (g) property registration; and
- (h) such other databases at the National level as may be notified,

and the authority shall inform the action taken, within such period as may be notified from time to time, to the Central Government:

Provided that the preparation or maintenance of database relating to electoral rolls in clause (b) shall be without prejudice to the provisions of the Representation of the People Act, 1950 (43 of 1950).]

Chief Registrar.

4. (1) The State Government may, by notification in the Official Gazette, appoint a Chief Registrar for the State.

(2) The State Government may also appoint such other officers with such designations as it thinks fit for the purpose of discharging, under the superintendence and direction of the Chief Registrar, such of his functions as he may, from time to time, authorise them to discharge.

(3) The Chief Registrar shall be the chief executive authority in the State for carrying into execution the provisions of this Act and the rules and orders made thereunder subject to the directions, if any, given by the State Government.

(4) The Chief Registrar shall take steps, by the issue of suitable instructions or otherwise, to co-ordinate, unity and supervise the work of registration in the State for securing an efficient system of registration and shall prepare and submit to the State Government, in such manner and at such intervals as may be prescribed, a report on the working of this Act in the State along with the statistical report to in sub-section (2) of section 19.

¹⁰[(5) The Chief Registrar shall take steps to register births or deaths and maintain a unified database of registered births and deaths at the State level by using the portal as approved by the Registrar General of India and it shall be obligatory upon the Registrars to share the data of registered births and deaths to such database.

(6) Subject to the proviso to sub-section (1) of section 17 and with the prior approval of the State Government, the database of registered births and deaths maintained under sub-section (5) at the State level may, on request, be made available to the authority dealing with other databases at the State level and the authority shall inform action taken, within such period as may be notified from time to time, to the State Government:

Provided that the preparation or maintenance of database relating to electoral rolls shall be without prejudice to the provisions of the Representation of the People Act, 1950 (43 of 1950).]

10. Inserted by the Registration of Births and Deaths (Amendment) Act, 2023, w.e.f. 1-10-2023.

Registration divisions.

5. The State Government may, by notification in the Official Gazette, divide the territory within the State into such registration divisions as it may think fit and prescribe different rules for different registration divisions.

District Registrar.

6. (1) The State Government may appoint a District Registrar for each revenue district and such number of Additional District Registrars as it thinks fit who shall, subject to the general control and direction of the District Registrar, discharge such functions of the District Registrar as the District Registrar may, from time to time, authorise them to discharge.

(2) The District Registrar shall superintend, subject to the direction of the Chief Registrar, the registration of births and deaths in the district and shall be responsible for carrying into execution in the district the provisions of this Act and the orders of the Chief Registrar issued from time to time for the purposes of this Act.

Registrars.

7. (1) The State Government may appoint a Registrar for each local area comprising the area within the jurisdiction of a municipality, panchayat or other local authority or any other area or a combination of any two or more of them:

Provided that the State Government may appoint in the case of a municipality, panchayat, or other local authority, any officer or other employee thereof as a Registrar.

(2) Every Registrar shall, without fee or reward, enter in the register maintained ¹¹[electronically or otherwise,] for the purpose all information given to him under section 8 or section 9 ¹¹[in respect of births and deaths which has taken place in his jurisdiction] and shall also take steps to inform himself carefully of every birth and of every death which takes place in his jurisdiction and to ascertain and register the particulars required to be registered.

(3) Every Registrar shall have an office in the local area for which he is appointed.

(4) Every Registrar shall attend his office for the purpose of registering births and deaths on such days and at such hours as the Chief Registrar may direct and shall cause to be placed in some conspicuous place on or near the outer door of the office of the Registrar a board bearing, in the local language, his name with the addition of Registrar of Births and Deaths for the local area for which he is appointed, and the days and hours of his attendance.

(5) The Registrar may, with the prior approval of the Chief Registrar, ¹²[appoint Sub-Registrars and, in the event of any disaster or epidemic, appoint Special Sub-Registrars] assign to them any or all of his powers and duties in relation to specified areas within his jurisdiction.

¹¹[*Explanation.*— For the purposes of this sub-section, the expressions, —

- (i) “disaster” shall have the same meaning as assigned to it in clause (d) of section 2 of the Disaster Management Act, 2005 (53 of 2005);

11. Inserted by the Registration of Births and Deaths (Amendment) Act, 2023, w.e.f. 1-10-2023.

12. Substituted for “appoint sub-Registrars and”, *ibid*.